

		is not a case where Audi is being haled into a California court as the result of “random,” “fortuitous,” or “attenuated” contacts, or of the unilateral activity of a third party. [Citation.] Rather, Audi's conduct and connection with California are such that it had clear notice it would be subject to suit here.” (<i>Id.</i>, at 117.) As the court in <i>Audi</i> found sufficient evidence of purposeful availment and relatedness requirements of specific jurisdiction, this court also finds sufficient evidence of availment supporting personal jurisdiction over Defendant in this matter. This leaves the issue of fair play and substantial justice and relatedness. While the court in <i>Audi</i> found it fair and reasonable that Audi be haled into court in California for a lawsuit involving design defect which resulted in a child being injured when the car pinned him to a wall, there was no Song-Beverly warranty issues or marketing/sales issues that are present in that case. In the matter before this court, causes of action one through five are Song-Beverly or related claims based upon warranty issues. Defendant does not issue warranties on vehicles that are sold in the United States, nor does it provide replacement parts or service vehicles sold in the United States. (Piep Decl. ¶¶ 5-6, 13.) Nor does it market, advertise, or sell products within the United States (causes of action numbers six through eight). (Piep Decl. ¶¶ 5-10, 13.) Therefore there is no relationship between Defendant and the issues of this litigation. (<i>Audi</i> 108 Cal. App. 5th at 107.) As the controversy is not related to or does not arise out of Defendant’s contacts with California, the assertion of personal jurisdiction would not comport with fair play and substantial justice. Under the specific facts of this case, it would not be fair and reasonable to expect Defendant to be haled into California court for the issues alleged. The Motion is GRANTED on this basis. Although neither party addressed this in their pleadings, even if California were to be able to assert personal jurisdiction over Defendant under the facts of this specific case, the summons itself appears to have not been served on Defendant. The proof of service indicates Defendant was served on ‘CSC Lawyers Incorporating Service - Alex Jenkins - Authorized Agent - Person Authorized to Accept Service of Process’ at 2710 Gateway Oaks Dr Suite 150N, Sacramento, CA 95833 (“CSC”). (ROA 12.) The declaration in support of the Motion indicates Defendant does not have a registered agent or other personnel authorized to accept service of process in California. (Piep Decl. ¶ 12.) Plaintiff has not shown service on CSC was sufficient to effect service on Defendant. The Motion is also GRANTED on this basis. The court hereby orders service of summons on Defendant quashed. Defendant to give notice.
5	Au v. Elliot	Cont. to 9/26.

6	Lukash v. Avid Bioservices, Inc.	O/C
7	Dahleh v. NPI Debt Fund II, LP	O/C
8	Nichols v. Mojodojo Cali, LLC	The motion of plaintiff Summer Nichols (Plaintiff) for leave to file a first amended complaint is GRANTED. (Code Civ. Proc., § 473(a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The Court finds Plaintiff has shown the interests of justice support granting the motion. There appears to be no prejudice that would result from the amendment as trial is not set to commence until August 2027. Moreover, defendant Mojodojo Cali, LLC d/b/a Sky Zone Mission Viejo (Defendant) makes no argument that it would be prejudiced by the amendment. Defendant argues the amendment is futile because the proposed amended complaint does not supply facts sufficient to state gross negligence. This argument is more suitably addressed by demurrer or other appropriate proceedings. (<i>See Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)</i> (1989) 213 Cal.App.3d 1045, 1048 “[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”).) Accordingly, the motion is GRANTED. The First Amended Complaint is to be separately filed within 7 days of the date of this order. Counsel for Plaintiff is ordered to give notice of this ruling.
9	Trillo v. American Honda Motor Co.	Cont. to 10/5
10	Lozano v. Absolute Law Group	Before the Court is a motion to compel arbitration and stay proceedings filed by defendants Absolute Law Group, PC and Michael Banks (Defendants) against plaintiff Nanci Lozano. For the reasons set forth below, the motion is DENIED. Defendants met their burden to show the existence of a written arbitration agreement that covers Plaintiff’s claims. (Code of Civ. Proc. § 1281.2; see also <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565; Declaration of Freddie V. Vega, Ex. A.) However, Plaintiff met her burden the arbitration agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, 9 U.S.C. § 401 et. seq. (EFAA).